

Revision questions

Private International Law

1. What is private international law?

Private international law refers to rules for dealing with cases involving a foreign element. The foreign elements may be events which have taken place in a foreign country, or they may be foreign domicile, residence, or place of business of the parties.

2. What do you know about the term 'conflict of laws'?

Refers to private international law, conflict of laws is concerned with cases in which the parties or other relevant issues are connected with more than one country, i.e. 'conflict' in a sense that more than one country might have jurisdiction or more than one law can be applied.

3. What is the meaning of a 'country' in private international law?

Any territorial unit having its own separate system of law; 'country' – jurisdiction, a single legal system. For example: a federal state of the USA, a Canadian province, an Australian state, England and Wales, Scotland, or Northern Ireland etc.

4. What are the three issues in conflict of law cases?

Jurisdiction ('choice of forum'), choice of law, recognition and enforcement of foreign judgements.

5. How are they decided? Can they be pre-determined?

Originally, all three issues were determined by domestic law, but today the area is subject to increasing international and EU regulation, in some areas there are international treaties governing conflict of law issues. In contract and agreements with an international element, governing or applicable law is often pre-determined by the parties.

6. What do you know about the regulation of conflict of laws cases in Croatia?

'Zakon o medunarodnom privatnom pravu' enumerates the types of cases and what laws are applicable, contains numerous references to EU or international agreements regulating conflict of law situations.

Public International Law

1. What does public international law regulate?

Public international law refers to a body of rules which regulate the behaviour of states and other entities in their relations with each other.

2. What is international legal personality and what does it entail?

International legal personality entails the possession of international rights and duties as well as the procedural capacity to seek redress for alleged violations and be held accountable for non-fulfilment duties.

3. Who has international legal personality?

Internationally recognized sovereign states and international organisations have full international legal personality. International organisations (IOs): members are sovereign states - IOs' constituent documents provide them international legal personality. Individuals may be accorded limited legal personality - particularly in cross-border crimes

4. What do you know about the sources of public international law?

There is no central international body, but according to Statute of the ICJ :

- international agreements (treaties)
- customary international law (custom)
- general principles of law recognised by civilised nations
- judicial decisions
- teachings of jurists

5. What is a treaty and what types do you know?

Treaty is an 'international agreement concluded between States in written form and governed by international law, whether embodied in a single instrument or in two or more related instruments and whatever its particular designation.'* It is an evidence of the express consent of states to regulate their interests according to international law.

*from the Vienna Convention

Common designations: convention, charter, protocol, etc.

6. What are the usual stages in the conclusion of a treaty?

Stages in the creation of international treaties:

- ADOPTION (formal agreement on the form and content of the text of a proposed treaty)
- SIGNATURE (signing of the treaty by the representatives of the negotiating states, expressing consent of a state to be bound by a treaty, or an expression of provisional consent subject to ratification, acceptance, or approval)
- RATIFICATION a.k.a. acceptance, approval, confirmation; the definite consent of a state to be bound by the treaty (acceptance into national law, typically done by national legislatures)
- ENTRY INTO FORCE (the beginning of the period of the binding force of a treaty)

*ACCESSION is the formal acceptance of a treaty by a state which did not take part in negotiating and signing it

*RESERVATION is a unilateral statement made by a state when signing, ratifying, or acceding to a treaty, by which it means to exclude or to modify the legal effect of certain provisions of the treaty in their application to that state

7. What do you know about the principles of the conclusion of treaties from the Vienna Convention on the Law of Treaties?

Vienna Convention lays down five major principles governing international treaties

- free consent - parties enter IA by free consent, IA cannot create obligations on third parties
- good faith (bona fide) - acting in good faith, with the best intentions
- pacta sunt servanda - ('agreements must be kept') treaties are binding upon the parties, internal (national) law cannot be justification for breach of a treaty
- rebus sic stantibus - ('things thus standing') extraordinary circumstances may lead to the termination of a treaty e.g. a severe breach, disappearance or change of circumstances
- favor contractus - preference for the maintenance rather than termination of a treaty; better to conclude a treaty than abandon for formal reasons

8. Compare the system of international law with a national one.

International legal system is often referred to as 'soft law' because it is decentralised and based on consent unlike any national legal system, which is centralised and imposed. There is no international legislature enacting binding rules nor there is an international executive enforcing laws.

International Organisations

1. When was the UN founded and which international organisation did it succeed?

The UN was founded on 24 October 1945 with the ratification of the Charter of the United Nations, signed at the UN Conference in International Organization in San Francisco. It succeeded the League of Nations whose main aim was to prevent another world war.

2. Where are its headquarters and how many member states does it have?

The UN has 193 member states (nearly all sovereign nations of the world) and its headquarters are in New York City, NY, USA.

3. What are the UN's official languages?

Six official languages: English, French, Arabic, Chinese, Russian, Spanish.

4. What are the principal organs of the UN?

The UN consists of six principal organs:

- General Assembly
- Security Council

- Economic and Social Council
- Secretariat
- International Court of Justice (in The Hague)
- Trusteeship Council (inactive)

5. What do you know about the General Assembly?

The General Assembly is main deliberative, policymaking and representative body of the UN, a forum of multilateral discussion under the Charter, meets in yearly sessions (Sep- Dec): one state – one vote, resolutions of the UN are not binding on the members, except budgetary matters. GA President is elected for a one-year term of office and also elects non-permanent members of the Security Council. GA has an important role in the codification of international law.

6. What about the UN Security Council?

The UN Security Council is a body in charge of maintaining world peace and security. There are five permanent members: China, France, Russia, the UK and the USA (veto power) and ten non-permanent members (voted for two-year terms). Security Council has the power to issue binding decisions that Member States have agreed to abide by in the Charter.

7. What do you know about the jurisdiction and functioning of the International Court of Justice?

ICJ is a primary judicial organ of the United Nations established in 1945 by the UN Charter and located in The Hague, Netherlands. It has jurisdiction over treaties and conventions in force, decides on contentious issues as submitted by states and also issues advisory opinions to UN bodies and agencies. It is composed of 15 judges - 5 judges are from UN Security Council permanent member states. 'Ad hoc' judges may be appointed for particular cases (usually from the applicant and/or respondent states).

Procedure: applicant state files an application -> respondent state may or may not agree to take part -> if both agree, the Court deliberates and reaches a decision -> decision is binding and final (no appeal) -> enforcement measures for non-compliance within the competence of the Security Council (usually not used).

Protection of Human Rights in Europe

1. When was the COE founded and how many member states are there? The

COE was founded in 1949. There are 46 member states.

2. What is its principal document? What are some of its aims?

COE's aim is to develop and promote democratic principles based on the European Convention of Human Rights (key document of the COE) i.e to protect human rights, pluralist democracy and the rule of law. ECHR contains 18 articles regulating rights such

as: the right to life, the right to liberty and security, the right to a fair trial, conscience and religion, expression, marriage, etc.

3. How many judges are there in the ECHR?

There are 46 judges (equal to the number of member countries), but there is no nationality requirement.

4. How is the court organised?

It is divided into five sections and each section may form four different court formations:

- a single-judge formation
- a Committee (three judges)
- a Chamber (seven judges)
- a Grand Chamber (seventeen judges)

5. What is the task of the committees for admissibility?

A Committee (three judges) rules on the admissibility and merits if they concern rights, i.e. violations covered by existing case-law. Committees/chambers decide on admissibility and merits by a majority vote.

6. Who can file an application with the Court?

Any Contracting State (State application) or individual claiming to be a victim of a violation of the Convention (individual application) may lodge directly with the Court in Strasbourg an application alleging a breach by a Contracting State of one of the Convention rights.

7. Can the application be in the applicant's mother tongue?

Official languages are English and French, but applications may be submitted in any of the official languages of the Contracting States. Once the application has been declared admissible, one of the Court's official languages must be used, or alternatively, the President of the Chamber/Grand Chamber may authorize continued use of the language of the application

8. Are the decisions of the Chambers final?

A Chamber judgment becomes final three months after delivery. Within that time, any party may request that the case be referred to the Grand Chamber, if it raises a serious question of interpretation or application or a serious issue of general importance. If the parties declare that they will not make such a request, the judgment will become final immediately. Judgements of the Grand Chamber are final.

The Legal Foundations of the EU

1. What two ideas were proposed at the Hague Congress 1948?

Two ideas for realization of the principles: a federative union of states (supported by Belgium and France), and a form of intergovernmental co by the UK).

2. How many member states are there in the EU / COE?

In the European Union 27 and the Council of Europe 46 member states.

3. What do the European Communities include?

European Coal and Steel Community (Treaty of Paris, 1951.) -> European Economic Community (single market) -> European Atomic Energy Community (Euratom) -> Brussels Treaty (Merger Treaty, 1965. - Merges the executive bodies of the three communities)

-> Single European Act (1986. formally establishes the economic and customs union, the single market and the four freedoms - free movement of: goods services persons, capital)

-> Treaty establishing the European Union (a.k.a. the Maastricht Treaty, 1992., aims: a border-free area, common foreign and security policy, judicial and police co-operation, economic and monetary union, creation of the euro)

4. What year was the European Union established?

1992. with the Treaty establishing the European Union (a.k.a. the Maastricht Treaty).

5. What were the three pillars of the EU?

The three pillars of the EU:

- European Community (EEC+ECSC+Euratom)
- Common Foreign and Security Policy
- Justice and Home Affairs

6. What do you know about EU language policy?

MULTILINGUALISM – a key feature of the EU. Every EU citizen has the right to use their own language, all laws are translated into and available in all EU languages. There are currently 24 official languages of the EU.

7. What is primary legislation of the EU?

Primary EU law today is Treaty on European Union (TEU) and Treaty on the Functioning of the European Union (TFEU). Primary law sets out: EU objectives and principles, EU institutions and their functioning, EU competences in relation to MS, decision-making rules etc.

8. What about secondary legislation?

Secondary EU law includes unilateral acts adopted by EU institutions (regulations, directives, decisions, recommendations, opinions) and conventions and agreements that the EU is a party to.

Institutions of the EU

1 . What are the legislative bodies of the EU?

The legislative bodies are the Council of the EU and European Parliament.

2 . What do you know about the composition and powers of the main institutions?

Council of the European Union - a.k.a. Council of Ministers, represents the interests of the Member States, seat in Bruxelles, members: 27 national government ministers, sits in 10 configurations, depending on the topic of discussion, presidency of the Council – each MS chairs for 6 months – rotation; powers of the Council: negotiates, adopts and passes European legislation (codecision with the EP), proposals of the EC, co-ordinates national policies of Member States, concludes international agreements, approves EU budget (shared with EP), common foreign and security policy, freedom, security and justice

European Parliament - represents the interests of EU citizens, Strasbourg, Bruxelles and Luxembourg, members: 705 Members of the European Parliament (MEPs) chosen by EU citizens in elections for the EP (elections held every 5 years), representation by political groups, not by MS; powers of the European Parliament: LEGISLATIVE: passes European legislation (codecision with the Council), reviews the EC's work programme and asks it to propose legislation, BUDGETARY: approves EU budget (shared with Council), SUPERVISORY: approval of the members of the European Commission, questioning the Commission and the Council, supervising the work of all EU institutions.

European Commission - represents the interests of the EU, in Bruxelles, composition: College of Commissioners (27 commissioners, Directorates-General and executive agencies), members proposed by national governments, approved by the Council and the EP, a 'government' for the EU the executive, powers of the European Commission: drafts proposals of EU legislation, implements EU policies, enforces European law ('guardian of the Treaties'), controls EU budget.

European Council - defines general directions and priorities of the EU, in Bruxelles, members: Heads of States or Governments of EU Member States, President of the European Council and the President of the European Commission. Meets every six months or as needed.

3 . What is qualified majority and who votes by it?

COE votes by qualified majority vote which is reached if two conditions are simultaneously met: 55% of member states vote in favour - in practice this means 15 out of 27 - and the proposal is supported by member states representing at least 65% of the total EU population.

4 . What are the main tasks of the Court of Justice of the EU?

The main task is to supervise the interpretation of EU law, enforce EU law; seat in Luxembourg (working language: French). It supervises interpretation and application of EU law by national courts, enforces EU law, settles disputes between Member States, EU institutions, businesses and individuals. The Court comprises of The European Court of Justice (27 judges, preliminary ruling applications by national courts, some annulment and

appeal cases) and The General Court (54 judges (2 per MS), annulment applications by individuals, undertakings and sometimes MS governments, competition law, state aid, trade, agriculture, trade marks).

5 . Describe in more detail the preliminary ruling procedure and its purpose.

Preliminary ruling procedure is one of the five most common types of cases in the Court of Justice of the EU that deals with situations when national courts ask the Court to interpret a provision of EU law or to check the validity of an EU act. Other types include infringement procedure (actions brought against governments of EU member states for failure to apply EU law), action for annulment (brought against EU acts considered to be in conflict with primary legislation or fundamental rights), action for failure to act (brought against EU institutions for failing to make decisions required of them), actions for damages (brought by individuals, companies or organisations against EU decisions or actions). Each case assigned a judge-rapporteur and 1 advocate general.

6 . What do you know about the composition and powers of the Court of Auditors?

The Court of Auditors is not an actual court (in narrow sense), one member is from each Member State. Tasks include: checks EU income and expenditure (EU budget), checks the collection of EU taxes from citizens and whether they are spent economically, legally and for the intended purpose, investigates the financial statements of any person or organisation handling EU funds, carries out a yearly audit and report to the EP and the Council.

ENG 4: FINAL REVISION

1. The Court of Justice of the EU ensures the proper and uniform application of EU law. Sud Europske Unije osigurava ispravnu i jedinstvenu primjenu prava EU.
2. In order to meet the criteria for admissibility before the ECtHR, the applicant must have exhausted all domestic legal remedies.

Kako bi ispunio kriterije za dopuštenost zahtjeva pred Europskim sudom za ljudska prava, podnositelj zahtjeva mora iscrpiti sva domaća pravna sredstva.

3. International legal personality of international organisations is usually set out in their constituent documents. This refers to the capability of exercising certain rights and being subject to certain duties under international law.

Međunarodni pravni subjektivitet međunarodnih organizacija obično je određen u njihovim osnivačkim dokumentima. To se odnosi na sposobnost ostvarivanja određenih prava i preuzimanja dužnosti sukladno međunarodnom pravu.

4. A country is not bound by an international treaty before it has ratified it. This is usually done by legislatures.

Zemlju međunarodni ugovor ne obvezuje dok ga ne ratificira. To obično čine zakonodavna tijela.

5. Individual applications can be lodged against any signatory state to the Convention. Pojedinačni zahtjevi mogu se podnijeti protiv bilo koje države potpisnice Konvencije.
6. If a case raises a complex question of interpretation and consistent application of the Convention, a chamber may relinquish it to the Grand Chamber.

Ako se u predmetu postavi pitanje tumačenja i dosljedne primjene Konvencije, vijeće ga može prepustiti Velikom vijeću.

1. In private law cases involving a foreign element the following have to be decided: choice of law and choice of forum.

U privatnopravnim predmetima koji sadrže strani element potrebno je donijeti sljedeće odluke: izbor nadležnog sustava i izbor mjerodavnog prava.

2. The Treaty of Maastricht established the Economic and Monetary union, informally known as the Eurozone.

Ugovorom iz Maastrichta uspostavljena je ekonomska i monetarna unija, koja se neformalno naziva Eurozona.

3. The main bodies of the Council of Europe are the Committee of Ministers and Parliamentary Assembly.

Glavna tijela vijeća Europe su Odbor ministara i Parlamentarna skupština.

4. Primary law of the EU comprises founding treaties and treaties of accession. Primarno pravo EU uključuje osnivačke ugovore i ugovore o pristupanju.
5. UN Security Council has five permanent and ten non-permanent members. Vijeće sigurnosti UN-a ima 5 stalnih i 10 nestalnih članica.
6. The Council of the European Union sits in 10 different configurations. It decides by qualified majority. It brings together the representatives of the governments of the Member States.

Vijeće EU zajedno u 10 različitih sustava. Odlučuje kvalificiranom većinom. Ono okuplja predstavnike vlada država članica.

7. The Court of Justice deals with references for a preliminary ruling, submitted by national courts, when they encounter a problem of interpretation of EU law.

Sud se bavi zahtjevima za prethodnu odluku koje podnose nacionalni sudovi kada naidu na problem interpretacije prava EU.

- advocate general – nezavisni odvjetnik
- regulation (EU) - uredba
- harmonisation of legislation – usklađivanje zakonodavstva
- General Assembly – Opća skupština
- express consent – izričit pristanak
- action for annulment – tužba za poništenje
- reference/ request for a preliminary ruling – zahtjev za prethodnu odluku
- infringement proceedings – postupci zbog povrede
- actions for failure to act – tužbe zbog propusta
- actions for damages – tužbe za naknadu štete
- judge-rapporteur – sudac izvjestitelj

- directives – direktive
- decisions – odluke
- recommendations – preporuke
- opinions – mišljenja
- directorates general – glavne uprave
- nadgledati tumačenje europskog zakonodavstva - to supervise the interpretation of EU legislation
- obavljati godišnju reviziju – to carry out a yearly (annual) audit
- odobriti proračun EU-a – to approve the EU budget
- rješavati sporove između država članica – to settle (resolve) disputes between Member States
- glavna uprava – Directorate General
- sastavljati prijedloge europskog zakonodavstva - to draft proposals of EU legislation